

[Return to Search](#)

Justice and judgment among the Tiv

Author(S): Bohannan, Paul**Document Type:** Book**Original Page:** 202**Culture (OWC):** [Tiv \(FF57\)](#)**Region:** Africa**Sub Region:** Western Africa**Field Date:** 1949-1953**Coverage Date:** 1940s - 1950s**Place Coverage:** Benue State, Nigeria**Section Title(S):** III. THE SUBJECTS OF THE MOOT

The tension was over. The moot could be finished quickly: Gesa had brought about his own death. Someone tried to joke about the elders and their knowledge that the situation would be as it was (i.e. one witch knows another); someone else tried to laugh. Then Orya began a dirge. He walked heavily back into the compound, singing as he came, those peculiarly Tiv dirges which start high and come down a minor scale for two octaves or more and end in formalized sobs. He sat down slowly and silently. The other agnates and the age-set also resumed their positions. The women, who had all gone down to the stream, did not return for another half-hour.

[627
Informal In-Group
Justice](#)[763
Dying](#)[764
Burial Practices And
Funerals](#)

One of the elders said, 'It was the age-set. It was they who wanted him opened.'

[561
Age Stratification](#)[613
Lineages](#)[627
Informal In-Group
Justice](#)[763
Dying](#)[764
Burial Practices And
Funerals](#)[778](#)

Sacred Objects And
Places

Kwaghwam replied, 'I don't like it. But was it a lie (*yie*) which we did?'

561
Age Stratification

613
Lineages

627
Informal In-Group
Justice

763
Dying

764
Burial Practices And
Funerals

778
Sacred Objects And
Places

One of the junior elders, a man very little older than the age-set, said that the whole thing was a matter of *swem* . ' *Swem* killed him,' he noted through the other platitudes.

561
Age Stratification

613
Lineages

627
Informal In-Group
Justice

763
Dying

764
Burial Practices And
Funerals

778
Sacred Objects And
Places

Slowly, over about fifteen minutes, they all admitted that this was indeed the case: *swem* had killed Gesa. Meanwhile, the women began to come back, a few at a time, into the compound.

561
Age Stratification

613
Lineages

627
Informal In-Group
Justice

763
Dying

764
Burial Practices And
Funerals

778
Sacred Objects And
Places

There was nothing more to say. Someone in the age-set said, 'We have looked. We know. Let us go.' (*Se nenge mfe. Mough sha .*)

561
Age Stratification

613
Lineages

627
Informal In-Group
Justice

763
Dying

764
Burial Practices And
Funerals

778
Sacred Objects And
Places

Then Kwaghwam rose and went before the elders. 'We must have his people,' he said.

561
Age Stratification

613
Lineages

627
Informal In-Group
Justice

763
Dying

764
Burial Practices And
Funerals

778
Sacred Objects And
Places

This statement raised a turmoil again. Finally, however, Orya formally took each of Gesa's widows by the wrist and handed them to Kwaghwam, who grasped their wrists, thus signifying that he, for the age-set, was offering them protection. Gesa had a third wife, who had been absent for three months. The age-set asked several questions about her. Orya said he knew nothing about her, but would ask and be responsible for her well-being.

561
Age Stratification

593
Family Relationships

595

Polygamy

768
Social Readjustments
To Death

Kwaghwam said, 'What about Gesa's other people?' He referred to Gesa's younger full brother. The agnates shouted in anger, 'We did not kill Gesa. *Swem* killed Gesa. Why should Gesa's age-set seek to protect his brother, as if it had been we who killed Gesa?'

561
Age Stratification593
Family Relationships595
Polygamy768
Social Readjustments
To Death

Kwaghwam was firm. Finally the agnates concurred, and the younger brother was handed to Kwaghwam, who grasped his wrist also, thus putting him under the protection of the age-set.

561
Age Stratification593
Family Relationships595
Polygamy768
Social Readjustments
To Death

Kwaghwam then asked, 'What about the sick daughter of Gesa's sister?'

561
Age Stratification606
Parents-In-Law And
Children-In-Law768
Social Readjustments
To Death

Human Relations Area Files

755 Prospect Street

New Haven, CT 06511

General Inquiries: ✉ hraf@yale.eduIssues and Bugs: ✉ hraf-support@yale.edu

